



File No.: EXP202304259

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 14, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent has installed a surveillance camera in a property that is not marked with the required informative signs indicating a monitored area, with the camera directed towards the public road, and there is no record of prior administrative authorization for this.

Along with the notification, images of the camera's location and a response to an inquiry made to the local Town Hall regarding the camera are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On March 31 and April 24, 2023, attempts were made to notify the respondent of the transfer, but on both occasions, it was returned by the postal service due to absence during delivery. An attempt was made to ascertain the NIF of the respondent through an inquiry to the AEAT without success. Finally, through the Cadastre, it was verified that the owner of the property where the surveillance system subject to this complaint is installed is a different person than the one appearing in the complaint.

On May 23, 2023, the transfer was notified to the respondent with the new data obtained from the Cadastre, and the notification was delivered by the postal service on June 6, 2023.

FOURTH: On June 19, 2023, the respondent submitted a handwritten responsible declaration with content similar to that of the form used in this Agency, in which they state that "... there have been, nor are there, installed surveillance cameras..." and then attached several photographs of the façade of the property to substantiate this, in which several of these photographs show the camera subject to this complaint, which is not installed on the façade nor as part of a system but is located on the windowsill of one of the first-floor windows facing outside the property.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FIFTH: On June 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SIXTH: On November 30, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) classified in Article 83.5.a) of the GDPR and for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR.

SEVENTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on December 27, 2023, as recorded in the acknowledgment of receipt in the file.

EIGHTH: On January 4, 2024, a written statement of allegations was received from the respondent and owner of the property, in which it is stated that they do not reside in said property but have it rented. Additionally, a document from the tenant of the same is provided, which, in summary, includes the following considerations:

"I was accused" of having placed a surveillance camera in a window of the property that overlooks the entrance to my home, and partly to the public road, without having declared this fact to the data protection agency, nor having notified the neighbors with the "monitored area" signs indicated for these cases, prior to registration with the AEPD. To begin with, I must clarify that at no time did I install such a device or similar with the intention of monitoring, and/or recording anyone, however, I was compelled for reasons that I will now recount, to protect myself (...).

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present proceeding,

PROVEN FACTS

FIRST: That the respondent is the owner of the property in front of which the complaint has been filed, but they have it rented, not residing in it.

LEGAL GROUNDS

I

Competence

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations. It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Legality of processing

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and

understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. If the monitored space has several entrances, this sign indicating the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to clarify the context of the surveillance. The processing of personal data is subject to the rest of the processing principles contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary for the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to guarantee the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

5/8

Under no circumstances shall the use of surveillance practices be permitted beyond the environment subject to the installation and, in particular, shall not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, in order

to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time the existence of the recording is known.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of natural persons, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/8

- the Guide for Compliance with the Duty to Inform (both available in the "Guides and Tools" section).

It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and, if applicable, generates various

documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

Analyzing the background information in the present file, the respondent indicates that there have been, and are, no surveillance cameras installed, despite providing several photographs of the facade of the dwelling in the same document, in which several of them appear to show an object that could be the camera in question, which is not installed on the facade nor as part of a system but is located on the windowsill of one of the first-floor windows facing the exterior of the dwelling.

From the provided photographs, it can be inferred that the camera would be capturing external areas outside its property. Therefore, the capture would not be proportional and in accordance with the regulations set forth, constituting a possible violation of Article 5.1.c) for breaching the principle of data minimization, since monitors must capture images limited to the interior space and the public thoroughfare strictly necessary.

V

Conclusion

According to the principles of administrative sanctioning law, a series of elements must be present to understand that an administrative infraction has occurred.

First, for administrative liability to exist, it is necessary that the person being accused has committed an action or omission. If this conduct, whether active or omissive, is regulated in the administrative norms as an infraction, then it will be granted such nature.

Furthermore, the principle of liability requires that the alleged responsible party has acted culpably or willfully, with the first case being where the actions are conscious and voluntary, and the latter being those that are involuntary but result in a breach of the norm. Another essential element of administrative infractions is the effect of time, as only those behaviors that are classified as infractions at the time they are committed can be punished.

In the present case, and since this procedure is open against B.B.B., who is the landlord of the dwelling and does not reside in it, it is considered appropriate to archive the case due to the lack of necessary factual premises.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/8

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure, as the commission of an administrative infraction by the accused person has not been substantiated.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1403-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es